



THE NATIONAL ASSEMBLY SECRETARIAT EMPLOYEES ACT, 2018



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THE PAKISTAN CODE

THE NATIONAL ASSEMBLY SECRETARIAT EMPLOYEES ACT, 2018

ACT NO. VII OF 2018

[27th February, 2018]

An Act to regulate the recruitment and the conditions of service of persons appointed in the National Assembly Secretariat

WHEREAS it is expedient to regulate by law the recruitment and the conditions of service of persons appointed in the National Assembly Secretariat and to provide for matters connected therewith or ancillary thereto;

It is hereby enacted as follows: —

1. Short title, application and commencement.—(1) This Act may be called the National Assembly Secretariat Employees Act, 2018.

(2) It applies to all employees in the National Assembly Secretariat wherever they may be.

(3) It shall come into force at once.

CHAPTER-I

PRELIMINARY

2. Definitions.—(1) In this Act, unless there is anything repugnant in the subject or context, —

- (a) “**ad hoc appointment**” means appointment of a duly qualified person made otherwise than in accordance with the prescribed method of recruitment, pending recruitment in accordance with such method;
- (b) “**appointing authority**” in relation to a post means the person authorized to make appointment to a post;
- (c) “**Basic Pay Scales (BPS)**” means pay scales prescribed by the Government and adopted by the Secretariat;
- (d) “**civil servant**” shall have the same meaning as assigned to it in the Civil Servants Act, 1973 (LXXI of 1973);
- (e) “**competent authority**” means the appointing authority;
- (f) “**Constitution**” means the Constitution of the Islamic Republic of Pakistan;
- (g) “**deputation**” means temporary transfer on loan of the services of an employee from the Secretariat or transfer to the Secretariat of a person from Federation or any Province or other authority;
- (h) “**directions**” means written directions of the Speaker as notified in the official Gazette;

- (i) “**employee**” means a person appointed in the Secretariat, who shall have the status of a civil servant subject to such modifications as the Speaker in consultation with the Finance committee may make, but does not include—
- (a) a person who is on deputation to the Secretariat; and
 - (b) a person who is employed on contract or work-charged basis or who is paid from contingencies;
- (j) “**Finance Committee**” means the Finance Committee of the National Assembly constituted as provided in Article 88 of the Constitution;
- (k) “**Government**” means the Federal Government;
- (l) “**initial appointment**” means appointment made otherwise than by promotion or transfer;
- (m) “**pay**” means the amount drawn monthly by an employee as pay and includes technical pay, special pay, personal pay and other emoluments declared as such by the Government for the civil servants subject to such modifications as the Speaker or the Finance Committee, as the case may be, may make;
- (n) “**permanent post**” means a post sanctioned without limit of time;
- (o) “**post**” means a post sanctioned in the Secretariat;
- (p) ¹[“**prescribed**” means prescribed under this Act and rules made thereunder, or as the case may be, prescribed under the Civil Servants Act, 1973 (Act No. LXXI of 1973) and rules made thereunder including regulations, policies, instructions, guidelines clarifications and orders for the time being applicable to the civil servants.];
- (q) “**rules**” means rules made or deemed to have been made under this Act;
- (r) “**Secretariat**” means the National Assembly Secretariat;
- (s) “**Secretary**” means the Secretary of the Secretariat who shall have the status of a Secretary of the Government and, in case of absence of Secretary, includes any other person authorized by the Speaker to perform the functions as Acting Secretary for the time being;
- (t) “**selection authority**” means the Federal Public Service Commission, a Departmental Selection Committee or other authority or body on the recommendation of or in consultation with which any appointment or promotion, as may be prescribed, is made;
- (u) “**Speaker**” means the Speaker of the National Assembly; and
- (v) “**temporary post**” means a post other than a permanent post.

¹Subs. by the Act No. V of 2026, s. 2.

(2) For the purposes of this Act, an appointment, whether by promotion or otherwise, shall be deemed to have been made on regular basis if it is made in the prescribed manner.

(3) All words and expressions used but not defined in this Act, shall unless the context otherwise requires, have the meanings assigned to them in the Constitution.

CHAPTER-II

SECRETARIAT

3. Secretariat.—There shall be a separate Secretariat of the National Assembly headed by the Secretary.

¹**[4. Strength and Composition of the Secretariat.**—(1) The total strength of the Secretariat, consisting all types of posts, including but not limited to permanent and temporary posts, shall not exceed four hundred percent of the total membership of the National Assembly prescribed in Article 51 of the Constitution of the Islamic Republic of Pakistan:

Provided that the existing strength of the Secretariat shall be reduced to the strength prescribed in sub-section (1) within a period of eighteen months from the date of commencement of the National Assembly Secretariat Employees (Amendment) Act, 2025.

(2) Subject to sub-section (1), creation, up-gradation, re-designation or abolition of any post shall be approved by the Finance Committee and shall be notified in the official Gazette.

(3) Appointment to a post created or up-graded under sub-section (2) shall be made in the manner prescribed in section 6 of this Act.]

CHAPTER-III

TERMS AND CONDITIONS OF SERVICE

¹**[5. Terms and conditions of service.**— Subject to this Act and rules made thereunder, the terms and conditions of service prescribed under the Civil Servant Act, 1973 and rules made thereunder including regulations, policies, instructions, guidelines, clarifications and orders for the time being applicable to the civil servants shall be applicable and deemed to be and always to have been applicable to the employees of the Secretariat in the corresponding posts or BPS.

Explanation: The following references in the Civil Servants Act, 1973 and rules made thereunder including regulations, policies, instructions, guidelines, clarifications and orders shall be construed as under:—

- (a) “Civil Servants” or “Government Servants” or “Government employees” as “employees of the National Assembly secretariat”;
- (b) “Ministry” or “Division” of Federal Government as “National Assembly Secretariat”;
- (c) “President” or “Prime Minister” as “Speaker”; and
- (d) “Secretary” as “Secretary of National Assembly Secretariat”.]

¹Subs. by the Act No. V of 2026, ss. 3-4.

¹**[6. Appointments.]**—(1) Appointments in the Secretariat shall be made in the prescribed manner by the appointing authority through one of the following methods, namely:—

- (a) by promotion of a person employed in the Secretariat on the basis of recommendations by the Departmental Promotion Committee; or
- (b) by initial appointment in the following manner:
 - (i) in BPS-15 and below on the basis of recommendations by the Departmental Selection Committee through an open advertisement and selection process in accordance with section 5 of this Act; and
 - (ii) in BPS-16 and above on the basis of recommendations by the Federal Public Service Commission:

Provided that in case a post is not advertised by the Commission within a period of six months of receipt of a requisition from the Secretariat, the appointing authority may withdraw such requisition and make appointments against posts in BPS-16 and above on the basis of recommendations by the Departmental Selection Committee through an open advertisement and selection process in accordance with section 5 of this Act.

(2) The Secretariat shall observe the same quota of vacancies as the Federal Government by maintaining a roster of each category of the quota from commencement of the National Assembly Secretariat Employees (Amendment) Act, 2025.]

¹**[7. Appointments on deputation.]**—(1) The appointing authority may appoint on deputation a person from the Federation or any Province or Authority through circulation of the post amongst civil servants if no employee eligible for appointment is available in the Secretariat. For this purpose, the Departmental Selection Committee shall circulate the post in the Secretariat and place on record with reasons that no eligible employee is available for appointment on the post in the Secretariat.

(2) Upon receipt of applications the Departmental Selection Committee, after interviewing the candidates, shall recommend the eligible and the most suitable candidate in the best interest of the Secretariat.

(3) Appointment on deputation may be made for a period of three years extendable for two years only.

(4) A deputationist shall neither be retained after a period of five years nor appointed by transfer or absorbed in the Secretariat.

(5) A person appointed on deputation in BPS-20 and below shall only be entitled to draw deputation allowance in addition to pay and allowances he was drawing as per the Last Pay Certificate issued by his parent department only:

Provided that sub-section (5) shall apply from commencement of the National Assembly Secretariat Employees (Amendment) Act, 2025.]

¹Subs. by the Act No. V of 2026, ss. 5-6.

¹[8. * * * * * * *]

¹[9. * * * * * * *]

¹[10. * * * * * * *]

11. Promotion.—(1) An employee possessing such minimum qualifications as may be prescribed shall be eligible for promotion to a higher post for the time being reserved under the rules for promotion in the service or cadre to which he belongs.

(2) A post referred to in sub-section (1) may either be a selection post or a non selection post to which promotions shall be made as may be prescribed, —

(a) in the case of selection post, on the basis of selection on merit; and

(b) in the case of a non-selection post, on the basis of seniority-*cum*-fitness.

¹[12. * * * * * * *]

¹[13. * * * * * * *]

¹[14. * * * * * * *]

¹[15. * * * * * * *]

¹[16. * * * * * * *]

¹[17. * * * * * * *]

¹[18. * * * * * * *]

¹[19. * * * * * * *]

CHAPTER-IV MISCELLANEOUS

¹[20. * * * * * * *]

¹[21. * * * * * * *]

¹[22. * * * * * * *]

¹[23. * * * * * * *]

¹[24. * * * * * * *]

25. Interpretation. — All questions relating to interpretation of provisions of this Act shall be referred to the Speaker whose decision thereon shall be final.

¹[26. * * * * * * *]

¹Omitted. by the Act No. V of 2026, s. 7.

CHAPTER-V

RULES

27. Rules. —(1) The Speaker may, with the concurrence of the Finance Committee, make rules for carrying out the purposes of this Act.

(2) Any rules, orders or instructions in respect of any terms and conditions of service of employees duly made or issued by an authority competent to make them and in force immediately before the commencement of this Act shall, in so far as such rules, orders or instructions are not inconsistent with the provisions of this Act, be deemed to be rules made under this Act.

¹[28. * * * * *

¹[29. * * * * *

30. Repeal. — (1) The National Assembly Secretariat (Recruitment and Conditions of Service) Rules, 1973 are hereby repealed:

Provided that orders and instructions, including method of appointment already notified issued and posts created under these rules shall continue to be in force until relevant directions and rules are made under this Act.

(2) Notwithstanding the repeal of the National Assembly Secretariat (Recruitment and Conditions of Service) Rules, 1973, all orders made, proceedings taken and acts done, including appointments made either through initial recruitment, induction, absorption, promotion, regularization or on contract basis, obligation, liability or penalty incurred, power conferred or exercised, by any authority or by any person, under the said rules and anything done in exercise of the powers, or purported exercise of the powers, conferred by or under the said rules, shall continue and be deemed to be and always to have been validly made, taken, done incurred, conferred, exercised or issued under this Act and shall not be called in question in any court on any ground whatsoever.

¹[**31. Act to override other laws.**— The provisions of this Act shall have effect notwithstanding anything contained in any other law for the time being in force.]

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RGN Dated: 23-01-2026

¹Omitted and added by the Act No. V of 2026, ss. 7-8.